

23CMCV00683 23CMCV00683

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-01

Motion: DEFENDANT PRIME HEALTHCARE SERVICES - ST. FRANCIS LLC'S MOTIONS: (1) TO COMPEL RESPONSES TO FIRST SET OF FORM INTERROGATORIES AND FIRST SET OF SPECIAL INTERROGATORIES; (2) TO COMPEL RESPONSES TO FIRST SET REQUEST FOR PRODUCTION OF DOCUMENTS; (3) FOR AN ORDER DEEMING REQUESTS FOR ADMISSIONS, SET ONE, ADMITTED; AND (4) REQUESTING MONETARY SANCTIONS. DATE: July 1, 2026 TIME: 8:30 A.M.

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Case Number: 23CMCV00683 Hearing Date: July 1, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

MARIA
ELENA DOMINGUEZ,

Plaintiff,

vs.

PRIME HEALTHCARE SERVICES
– ST. FRANCIS LLC, erroneously sued as ST. FRANCES MEDICAL CENTER, a
nonprofit religious corporation; Doe Security Guard; and DOES 1 through 50,
inclusive,

Defendants.

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CASE NO: 23CMCV00683

[TENTATIVE] ORDER RE: DEFENDANT PRIME

HEALTHCARE SERVICES - ST. FRANCIS LLC'S MOTIONS: (1) TO COMPEL RESPONSES TO

FIRST SET OF FORM INTERROGATORIES AND FIRST SET OF SPECIAL INTERROGATORIES;

(2) TO COMPEL RESPONSES TO FIRST SET REQUEST FOR PRODUCTION OF DOCUMENTS; (3)

FOR AN ORDER DEEMING REQUESTS FOR ADMISSIONS, SET ONE, ADMITTED; AND (4) REQUESTING

MONETARY SANCTIONS.

DATE: July 1, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant

Prime Healthcare Services - St. Francis LLC

Responding Party: None

Notice: Ok

Tentative Ruling: (1)

Defendant's Motion to Compel Responses to Defendant's Requests for Production of Documents, Set One is GRANTED IN PART.

(2)

Defendant's Motion to Compel Responses to Defendant's Special Interrogatories, Set One is CONDITIONALLY GRANTED.

(3)

Defendant's Motion to Compel Responses to Defendant's Form Interrogatories, Set One is GRANTED IN PART.

(4)

Defendant's Motion for Order Establishing Requests for Admissions Deemed Admitted is CONDITIONALLY GRANTED.

(5)

Defendant's Request For Monetary Sanctions is GRANTED IN THE REDUCED AMOUNT OF \$1,350.00

I.

BACKGROUND

This is an

action for injuries arising from an alleged assault and battery. Plaintiff Maria Elena Domingues alleges that she is diabetic and non-ambulatory such that she requires the use of a

wheelchair. On or about July 30, 2021, Plaintiff alleges that she was involved in an unrelated automobile accident and was taken to Defendant Prime Health Care – St. Francis LLC's ("Prime") facility for treatment. After her release from Prime's facility, Plaintiff alleges that she was provided with a facility-owned wheelchair and wheeled herself out to wait for an Uber when she was approached by an (as yet unidentified) security guard who accused her of attempting to steal the hospital's wheelchair and who ultimately forcefully dumped Plaintiff from the wheelchair onto the sidewalk. Plaintiff alleges that she suffered physical and emotional injury from the encounter.

On May 11, 2023, Plaintiff filed the instant action against Prime, Doe Security Guard, and Does 1 through 50, inclusive, alleging causes of action for: (1) Assault and Battery; (2) Negligence; and (3) Intentional Infliction of Emotional Distress.

On April 28, 2026, Prime filed the instant Motions: (1) to Compel Responses to Request for Production of Documents (Set One); (2) to Compel Responses to Special Interrogatories (Set One) and to Compel Responses to Form Interrogatories (Set One)[1]; and (3) for an Order Deeming Requests for Admissions, Set One Admitted (Set One). With each Prime requested sanctions.

On June 18, 2026, Defendant filed a Notice of Non-Opposition for each motion.

As of June 29, 2026, Plaintiff has not filed an Opposition and Prime has not filed a Reply. Pursuant to Code Civ. Proc. § 1005(b), all papers opposing a noticed motion must be filed with the court and served on all other parties "at least nine court days ... before the hearing" and all reply papers at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any opposition or reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal Standard

1.

Special Interrogatories (“SROGs”) and Form Interrogatories (“FROGs”)

A party must respond to interrogatories within 30 days after service. (Code Civ. Proc. §2030.260(a).) If a party to whom interrogatories are directed does not provide timely responses, the requesting party may move for an order compelling response to the discovery. (Id., §2030.290(b).) Once compelled to respond, the party waives the right to make any objections, including ones based on privilege or work-product protection. (Id. at §2030.290(a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Id., §§ 2024.020(a), 2030.290.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (See Id., §2030.290; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

2.

Requests for Production of Documents (“RPDs”)

A party must respond to RPDs within 30 days after service. (Code Civ. Proc. § 2031.260(a).) If a party to whom requests for production of documents is directed does not provide timely responses, the requesting party may move for an order compelling response to the discovery. (Id., § 2031.300(c).) The party failing to respond also waives the right to make any objections, including ones based on privilege or work-product protection. (Id., §2031.300(a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Id., §§2024.020(a), 2031.300.)

3.

Requests for Admission (“RFAs”)[2]

A party must respond to RFAs within

30 days after service. (Code Civ. Proc. § 2033.250(a).) If the responding party fails to provide a timely response, the responding party waives any objections to the requests, including ones based on privilege or work product. (Id., § 2033.280(a).) When timely responses are not received, the propounding party may move for an order deeming the truth of any matters specified in the requests as admitted. (Id., § 2033.280(b).) The Court is required to make this order, unless it finds that the responding party served a proposed response that substantially complies with Code Civ. Proc. § 2033.220, and that such proposed response is served prior to the hearing on the motion. (Id., § 2033.280(c).)

B.

Discussion

1.

Service of the Discovery, Plaintiff's Responses and the Ensuing Motions

As the timeline surrounding each of the disputed Discovery responses is substantially similar, the Court addresses the timeline here referencing only Defense Counsel Brett Moore's ("Moore") declaration filed in support of Prime's Motion to Compel Responses to RPDs with the understanding that Moore's declarations in support of Prime's other motions identify substantially the same timeline and supporting documentation.

Moore

attests that Prime served Plaintiff with each set of Discovery on October 21, 2024 and Plaintiff's responses were initially due on November 22, 2024. (See, e.g., Moore Decl. ISO RPDs, ¶¶ 2-3, Exh. 1.) Plaintiff requested, and Prime granted, multiple extensions through January 2, 2025^[3] to obtain and provide Plaintiff's verifications. (Id., ¶¶ 3-6, Exhs. 2-4.) Plaintiff's counsel ultimately served unverified Discovery responses on January 2, 2025, and stated that verifications would be provided shortly. (Id., ¶¶ 7-8, Exhs. 5-6.) Although Moore met and conferred with Plaintiff's counsel in an attempt to obtain the missing verifications, and although Plaintiff's counsel provided further unverified supplemental SROG, FROG and RPD responses on April 15, 2025, Plaintiff had not provided verifications as of the filing of the instant Discovery motions. (Id., ¶¶ 8-16, Exhs. 6-13.)

2.

Request for Production of Documents

Prime moves for an order compelling Plaintiff

to serve verified, code-compliant responses to its RPDs, without objection, and to produce all responsive documents. Plaintiff makes no opposition.

The Court finds that Prime served

its RPDs on October 21, 2024 and Plaintiff has yet to provide verified responses. Unverified discovery responses are tantamount

to no response at all and are subject to a motion to compel responses (rather than a motion to compel further responses). (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 635-636 ("Appleton").) However, objections to demands for production are responses that are not required to be verified because "objections are legal conclusions interposed by counsel, not factual assertions by a party." (Blue Ridge Insurance Co. v. Superior Court (1988) 202 Cal.App.3d 339, 345 ("Blue Ridge"); see also Code Civ. Proc. § 2031.210 (a)(3) ("The party to whom [an RPD] has been directed shall respond by any of the following . . . [a]n objection to the particular [RPD]"); see also id., § 2031.250 (a) ("The party to whom the [RPD] is directed shall sign the response under oath unless the response contains only objections") (emphasis added).) As such, where an objection was asserted, any such objection was a response that was not required to be verified and Prime's resort if it deemed the asserted objections to be inadequate, incomplete, evasive or lacking in merit was to file a motion to compel further responses as to those responses. (See Code Civ. Proc. § 2031.310.)[4]

Accordingly, the Court GRANTS IN

PART Defendant's Motion to Compel Responses to its Request for Production of Documents, Set One. Plaintiff's

objections already asserted remain as asserted.

Where Plaintiff has either failed to assert an objection, asserted an objection but responded partially (without verification), or agreed to produce documents, Plaintiff is ordered to produce code-compliant verified responses, without (further) objection as set forth below.

3.

Special Interrogatories and Form Interrogatories

Prime

moves for an order compelling Plaintiff to serve verified, code-compliant responses to Prime's SROGs and FROGs.

As with Prime's RPDs, the Court

finds that Prime served its FROGs and SROGs in October 2024 and Plaintiff has yet to provide verified responses. Again,

unverified discovery responses are tantamount to no response at all and are subject to a motion to compel responses (rather than a motion to compel further responses). (Appleton, supra, 206 Cal.App.3d at pp. 635-636.) However, again as with Prime's RPDs, objections to FROGs and SROGs are responses that are not required to be verified because "objections are legal conclusions

interposed by counsel, not factual assertions by a party." (Blue Ridge,

supra 202 Cal.App.3d at p. 345; see also Code Civ. Proc. § 2030.210(a)(3)("The party to whom [FROGs or SROGs have] been propounded shall respond in writing

under oath separately to each interrogatory by any of the following . . . [a]n

objection to the particular interrogatory"); see also id., § 2030.250(a)("The

party to whom the interrogatories are directed shall sign the response under

oath unless the response contains only objections")(emphasis added).) As such, where an objection was asserted, any

such objection was a response that was not required to be verified and Prime's resort

if it deemed the objections to be evasive, incomplete or lacking in merit was

to file a motion to compel further responses as to those responses. (See Code

Civ. Proc. § 2030.300.)[5]

Accordingly,

the Court GRANTS IN PART Prime's Motion to Compel Responses to its FROGs and

CONDITIONALLY GRANTS IN PART Prime's Motion to Compel Responses to its SROGs. Plaintiff's objections already asserted

remain as asserted. Where Plaintiff has either

failed to assert an objection, responded partially or responded without objection

(but failed to verify), Plaintiff is ordered to produce code-compliant verified

responses, without (further) objection as set forth below.

4.

Requests

for Admission

Prime

moves for an order deeming the truth of the matters in its RFAs admitted.

Where

a party has failed to respond to RFAs, the Court is required to issue an order deeming the truth of RFAs admitted unless it finds that the responding party served a proposed response that substantially complies with Code Civ. Proc. § 2033.220 prior to the hearing on the motion to deem the RFAs admitted. (Code Civ. Proc. § 2033.280(c).)

With regard to Prime's RFAs, the facts remain the same. Prime served its RFAs in October 2024 and Plaintiff has yet to provide verified responses. Again, unverified discovery responses are tantamount to no response at all and are subject to a motion to compel responses (rather than a motion to compel further responses). (Appleton, *supra*, 206 Cal.App.3d at pp. 635-636.)

Upon review of Plaintiff's responses to Prime's RFAs, the Court finds that the responses provided asserted no objections but rather respond to the RFA with either an admission or denial. (See Moore Decl. ISO RFAs, ¶ 7, Exh. 5.)[6] The Court finds that Plaintiff's unverified responses are tantamount to no response at all and thus the Court is required to issue an order deeming the truth of the RFAs admitted should Plaintiff fail to serve a response in substantial compliance with Code of Civil Procedure § 2033.220 prior to the hearing on this matter.

Accordingly, the Court CONDITIONALLY

GRANTS Prime's Motion to Deem RFAs Admitted.

Should Plaintiff fail to provide responses in substantial compliance with the applicable sections of the Code of Civil Procedure prior to the hearing on this matter, the Court will order the RFAs deemed admitted.

C.

Monetary Sanctions

If a motion to compel is granted and the moving party properly seeks monetary sanctions, the court "shall" order the party to whom the discovery was directed to pay the propounding party's reasonable expenses, including attorney fees, in enforcing discovery "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2023.030(a).)

Each of Prime's Discovery motions

has been granted, at least in part. Accordingly, the Court finds monetary sanctions are both warranted and compelled. Prime's counsel declares that an associate attorney at his firm, Ms. Lauren Barland ("Barland") spent at least 4 hours drafting, revising and reviewing the RFAs motion and corresponding documents at a rate of \$300 per hour and anticipates expending an additional two hours for traveling to and attending the hearing for a total of \$1,800. (Moore Decl. ISO RFAs, ¶¶ 10-11.)

Moore further declares that Ms. Elizabeth Pina ("Pina") spent at least 4.5 hours drafting, revising and reviewing the SROG and FROGs motion and corresponding documents at a rate of \$300 per hour and anticipates an additional two hours for traveling to and attending the hearing for a total of \$1,950. (Moore Decl. ISO SROGs/FROGs, ¶¶ 18-19.)

Finally, Moore declares that Pina spent at least 6 hours drafting, revising and reviewing the RPDs motion and its corresponding documents at a rate of \$300 per hour and contemplates an additional two hours anticipated for traveling to and attending the hearing for a total of \$2,400. (Moore Decl. ISO RPDs, ¶¶ 18-19.)

In all, Prime seeks an aggregate \$6,150 in attorney fees incurred and anticipated in bringing the instant Discovery motions. Although each of Prime's motions to compel have been at least partially granted, and while the Court finds the hourly rate for Barland and Pina to be reasonable for attorneys in the Greater Los Angeles Area, the Court finds Prime's requested sanctions unreasonable given the basic and duplicative nature of the Discovery motions. Further, the Court finds that a combined total of 6 hours for traveling to and attending the hearings on motions which will be heard on the same day and at the same time is unreasonable, especially given that the Court regularly allows remote appearances, which requires no travel at all.

Accordingly, the Court GRANTS Defendant's Request for Monetary Sanctions in the total reduced amount of \$1,350, specified as one and one half hours per motion at the rate of \$300/hour.

III.

CONCLUSION

The Court GRANTS IN PART Defendant's

Motion to Compel Responses to Requests for Production of Documents, Set One.

The Court GRANTS IN PART Prime's Motion
to Compel Responses to its Form Interrogatories, Set One.

The Court CONDITIONALLY GRANTS IN
PART Prime's Motion to Compel Responses to its Special Interrogatories, Set
One. Prime is ordered to pay the motion filing fee for its SROGs motion no
later than July 6, 2026 and, upon payment, to provide a declaration attesting
to having paid the filing fee along with a Proposed Order for the Court's
signature removing the condition and granting its SROGs motion in accordance
with this Order.

The Court CONDITIONALLY GRANTS Prime's
Motion for Order Deeming Requests for Admission Admitted, Set One. Should Plaintiff fail to provide substantially
code-complaint responses prior to the hearing on this matter, the condition
will be unsatisfied and Prime's RFAs motion will be granted unconditionally.

All further responses are ordered to
be served no later than August 3, 2026 unless a condition is not lifted.

The Court GRANTS Prime's Request for
Monetary Sanctions in the total reduced amount of \$1,350.00. The awarded sanctions are ordered to be paid
to Prime's counsel no later than August 3, 2026.

[1] In combining its motions regarding
its Special Interrogatories, Set One and its Form Interrogatories, Set One, Prime
has filed two separate motions under one cover.

The Government Code, and the Court Reservation System, requires a
separate hearing date reservation and filing fees for each motion. Further, it
is mandatory for court clerks to demand and receive filing fees. (See Gov. Code
§ 70617(f); *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457,
460.) Defendant has only paid three filing fees for what amounts to four
motions. Filing what should be two motions for form and special interrogatories
as one and paying only one motion filing fee circumvents the Court's
requirements and the strictures of the Government Code. Defendant will be
ordered to pay all additional required motion fees prior to the Court's ruling as
to the Special Interrogatories, Set One taking effect.

[2] Prime's RPDs, SROGs, FROGs and

RFAs are collectively referred to herein as the “Discovery.”

[3] Moore's declaration states “January 2, 2024.” (See Moore Decl., ¶ 6.) Given the context and reading the exhibits, the Court understands this to be a typographical error with the correction date being January 2, 2025.

[4] The Court acknowledges that Prime has included in its filed motions requests in the alternative to compel further verified responses. However, the Court finds Prime's alternative requests not in compliance with the Code of Civil Procedure or the Rules of Court. A motion to compel further discovery responses (be it for RPDs, SROGs or FROGs) requires the inclusion of a separate statement listing each demand or request as to which a further response is requested, the responses given, and the factual and legal reasons for compelling a further response. (Cal. R. Ct. 3.1345(a)(3), (c); see also Code Civ. Proc. §§ 2031.310(b), 2030.300(b).) No separate statements are provided here.

[5] See fn. 4.

[6] The Court notes that Plaintiff's responses contain a “preliminary statement” with instructions regarding how to proceed in the event privileged information is inadvertently produced. (See Moore Decl. ISO RFAs Motion, ¶ 7, Exh. 5, pp. 1-3.) The Court does not consider Plaintiff's reference to privileged documents made in a preliminary statement to be an assertion of an objection made in compliance with the Code of Civil Procedure. (See Code Civ. Proc. § 2033.310(a)-(d)(Requiring the responding party to respond “separately to each request,” with each response either answering or setting forth an objection to the particular request, and with each objection bearing “the same identifying number or letter . . . as the corresponding request”).)